SYNTHETIC TRAINING RECORD — NOT FILED — ALL FACTS AND IDENTIFIERS ARE FICTIONAL

UNITED STATES DISTRICT COURT FOR THE NORTHERN DISTRICT OF WEST VIRGINIA

Proceeding: Authenticated written discovery.

Asterglen Freight Software, Inc., Plaintiff, v. Copper Kestrel Logistics, LLC and Meridian Silt Holdings, LLC, Defendants.

Civil Action No. SYN-NDWV-25-CV-0618

Copper Authenticated Interrogatory and RFA Responses

Responses dated August 14, 2025. Filed November 24, 2025 as District ECF No. 49-1, an attachment to Asterglen's opposition at District ECF No. 49.

Copper Kestrel answers through its designated operations representative after a reasonable inquiry of operations, procurement, information-technology, and finance personnel and review of the Pilot License, change-order communications, access logs, meeting notes, invoices, and interruption ledger. These responses state Copper Kestrel's knowledge as of August 14 and may be supplemented as discovery continues.

General objections are preserved only to the extent applicable to a particular response. Copper Kestrel does not withhold responsive nonprivileged information on a boilerplate objection. A reference to “additional terminals” means the twenty-nine identifiers proposed in the unsigned June 3 change order, beyond the twelve terminals listed in the April 15 license schedule. A reference to “the configuration” means all forty-one identifiers provisioned by July 1. A reference to “cure” means reducing active access to the original twelve while retaining ordinary business data needed for continuity.

These definitions do not concede that every identifier was used in production or that the June 3 proposal became an executed amendment.

Interrogatory No. 1 — formation and license scope

Identify Copper Kestrel's understanding of the April 15, 2024 agreement and the permitted terminal count.

Response

Copper Kestrel understood that the executed Pilot License initially named twelve terminals. It also understood that expansion required a written schedule or change order signed by authorized representatives. The June 3 document proposed twenty-nine additional terminals but was not signed by Asterglen. Copper Kestrel does not contend that the unsigned proposal, standing alone, amended the written terminal schedule.

Copper Kestrel contends instead that the parties permitted a limited continuation while amendment discussions proceeded. Its personnel distinguish that contention from a claim that a formal written amendment had already been completed. The June 10 response imposed written conditions on a load test. Copper Kestrel understood those conditions to allow technical activity associated with testing, subject to monitoring and continued discussion. Asterglen characterizes the same writing more narrowly and denies that it permitted production use.

Section 9.2 separately required written notice of an asserted material breach and fifteen calendar days to cure before termination for breach or a demand for breach damages. Copper Kestrel understood that provision to remain operative regardless of whether the disputed expanded use was authorized. No response here admits that Copper Kestrel materially breached the agreement.

Interrogatory No. 4 — provisioning and operational status

Describe the creation and use of terminal identifiers through July 1, 2024.

Response

Operations personnel requested identifiers for the twelve licensed terminals and twenty-nine proposed additional locations. Asterglen's platform process completed creation of forty-one identifiers by July 1. Creation did not mean that every identifier continuously carried production traffic. Some locations performed configuration checks, data validation, routing simulations, and controlled load tests before ordinary dispatch use.

Copper Kestrel cannot determine production status from the identifier count alone. Its event tables show authentication, query, and routing activity, but the parties disagree about which activity exceeded the June 10 conditions. Copper Kestrel will identify the underlying rows on which it relies rather than treating the total count as dispositive.

The operations representative recalls that continued testing was commercially important because the proposed terminals had scheduled readiness work under Meridian's June 14 statement of work. Copper Kestrel directed Meridian to maintain the technical configuration while the parties discussed the proposed change order. Asterglen did not sign that document. Copper Kestrel maintains that the July 8 discussion permitted continued activity pending paperwork; Asterglen disputes that recollection and maintains that only a restricted test remained permissible.

Copper Kestrel admits that all forty-one identifiers remained provisioned when Asterglen conducted its July 18 compliance audit.

Interrogatory No. 7 — July 8 discussion

State the substance of every oral authorization on which Copper Kestrel relies.

Response

Copper Kestrel's operations representative recalls that, during the July 8 videoconference, Asterglen's project manager said the teams could continue while the paperwork was completed, provided they monitored the test and did not add locations beyond the forty-one then configured. Copper Kestrel understood that statement as temporary permission to continue the existing activity. Meridian's engineer recalls a similar operational instruction but did not understand it to alter the signed contract.

Asterglen disputes that account. Its project manager testified that the discussion concerned only a controlled load test under the June 10 written conditions and that no production expansion or waiver was authorized. Copper Kestrel acknowledges that no recording or signed transcript exists. Contemporaneous notes use the phrases “continue current test” and “paperwork still open,” but they do not quote every speaker or define production use.

Copper Kestrel therefore identifies the oral permission as a disputed fact, not as an undisputed written modification. Its contention depends on witness recollection, the follow-up messages, and the parties' subsequent conduct. It does not contend that Meridian possessed authority to bind Asterglen. Nor does it contend that the July 8 statement eliminated Section 9.2's written-notice and fifteen-day-cure requirements.

Interrogatory No. 10 — July 18 audit and July 22 communication

Describe Copper Kestrel's response to the audit and termination demand.

Response

The July 18 audit reported forty-one active terminal identifiers and questioned whether activity at the twenty-nine proposed additions exceeded the load-test conditions. Copper Kestrel's operations staff began comparing the audit list with its location and traffic tables. Before that comparison was completed, Asterglen sent its July 22 communication disabling the shared staging credential, declaring immediate termination for material breach, and demanding $480,000.

The July 22 communication did not provide fifteen calendar days to cure. It did not direct Copper Kestrel to deactivate the twenty-nine disputed identifiers by a future date, specify a test for successful cure, or offer restoration if cure occurred. Copper Kestrel immediately objected that termination and damages were premature under Section 9.2.

Operations and technical personnel assessed that the system could be reduced to the original twelve licensed terminals within three business days without loss of stored shipment data. That estimate assumed cooperation in identifying active sessions and orderly closure of the remaining identifiers. Meridian continued technical work through July 25 to inventory sessions, protect transaction integrity, and assist with reduction. Copper Kestrel does not characterize that work as proof that the expanded configuration remained authorized after July 22. It characterizes the work as mitigation and controlled shutdown activity following the disputed disablement.

Interrogatory No. 13 — counterclaim and offset

State the basis for Copper Kestrel's claimed $120,000 loss.

Response

Copper Kestrel attributes $120,000 to interruption and restoration costs associated with Asterglen's immediate July 22 disablement. The amount does not represent payment for the twenty-nine proposed terminal licenses. It consists of documented rerouting labor, manual dispatch coverage, customer-service credits, and technical restoration work incurred while operations were moved back to the original twelve-terminal configuration.

The finance ledger groups the claimed amount into four categories: $36,000 in emergency dispatch labor, $28,000 in temporary routing services, $24,000 in customer credits tied to delayed updates, and $32,000 in technical restoration and validation. Copper Kestrel will not seek duplicative recovery for an expense reimbursed by another source. The amounts remain subject to proof of causation, reasonableness, and mitigation.

Copper Kestrel contends that the counterclaim may offset any recovery Asterglen obtains. Asterglen denies liability and challenges the categories, allocation, and causal connection. The counterclaim remains pending independently of Asterglen's Count I demand, yet both concern Section 9.2, the July communications, the disablement, and the feasibility of cure.

Nothing in this response admits that the counterclaim has been adjudicated or that $120,000 is presently due. The figure states Copper Kestrel's claimed loss for discovery and motion practice.

Requests for admission

Request No. 1

Admit that the April 15 Pilot License identified twelve terminals. Admitted.

Request No. 2

Admit that the June 3 proposed change order listed twenty-nine additional terminals and was not signed by Asterglen. Admitted.

Request No. 3

Admit that forty-one identifiers had been provisioned by July 1. Admitted, with the qualification that provisioning alone does not establish production use at every location.

Request No. 4

Admit that Asterglen authorized production use at all forty-one terminals on July 8. Denied. Copper Kestrel contends that temporary continuation was orally permitted, but the scope and meaning of the statement are disputed, no executed amendment exists, and Asterglen denies production authorization.

Request No. 5

Admit that the July 22 communication gave Copper Kestrel fifteen calendar days to cure. Denied. The communication declared immediate termination and demanded $480,000 without a cure interval.

Request No. 6

Admit that reducing the system to twelve terminals was impossible. Denied. Copper Kestrel's technical assessment estimated completion within three business days.

Request No. 7

Admit that Meridian continued technical work through July 25. Admitted, with the qualification that the work included inventory, mitigation, session closure, and reduction assistance after Asterglen disabled the credential.

Authentication, verification, and supplementation

The operations representative verifies under penalty of perjury that these responses are true and correct to Copper Kestrel's knowledge after reasonable inquiry. The verification occurred August 14, 2025, and Copper Kestrel will supplement a response if later testimony or data materially changes it. The July 8 account remains contested. On November 24, 2025, the responses were filed as District ECF No. 49-1, an attachment to Asterglen's opposition at District ECF No. 49; that filing does not mean Asterglen adopted Copper Kestrel's contentions.